



CHAPTER 7.

An Act to extend to certain other persons the immunities and privileges accorded to envoys of foreign Powers accredited to His Majesty.

[6th March 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

- 1.—(1) While any person is recognised by His Majesty to be—
- (a) a member of the government of any foreign Power or of a provisional government, being a government for the time being allied with His Majesty and established in the United Kingdom ; or
- (b) a member of any national committee or other foreign authority for the time being established in the United Kingdom and recognised by His Majesty as competent to maintain armed forces for service in association with His Majesty's forces ;
- Extension of diplomatic privileges to members of foreign governments.

then, for the purpose of any enactment, rule of law or custom relating to the immunities and privileges of an envoy of a foreign Power accredited to His Majesty, and of the retinue of such an envoy, that person shall

be treated as if he were such an envoy and his official staff shall be treated as if they were his retinue :

Provided that nothing in this subsection shall be construed as extending to any person any immunity or privilege by reason that he is employed on the official staff of any person recognised as aforesaid, unless the person so employed is recognised by His Majesty to be performing duties no less responsible than those of a Diplomatic Secretary.

(2) The Secretary of State shall—

- (a) as soon as may be after the commencement of this Act, compile a list of the persons to whom immunities and privileges are extended under this section, and cause that list to be published in the London, Edinburgh and Belfast Gazettes ; and
- (b) whenever immunities and privileges cease or begin to be so extended to any person, amend the list, and cause a notice of amendment, or, if he thinks fit, an amended list, to be published as aforesaid.

With every list or notice so published there shall be included a statement of the date from which the list or amendment takes or took effect ; and the fact that any person is or was included or not included at any time among the persons to whom immunities and privileges are so extended may be conclusively proved by producing the Gazette containing the list, or, as the case may be, the last list taking effect before that time, together with the Gazettes (if any) containing notices of the amendments taking effect before that time, and by showing that the name of that person is or was at that time included or not included in the said list.

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2. While any person is recognised by His Majesty to be—

- (a) the envoy of a foreign Power accredited to any such foreign Power or provisional government as is mentioned in paragraph (a) of subsection (1) of the foregoing section ; or
- (b) the representative of any such provisional government as aforesaid accredited to any such foreign Power as aforesaid ;

he shall be treated, for the purpose of any enactment, rule of law or custom relating to the immunities and privileges of an envoy of a foreign Power accredited to His Majesty, and of the retinue of such an envoy, as if he were such an envoy.

- 3.—(1) This Act may be cited as the Diplomatic Privileges (Extension) Act, 1941. Short title
and
duration.
2 & 3 Geo.6.
c. 62.
- (2) This Act shall continue in force so long as the Emergency Powers (Defence) Act, 1939, continues in force.